

**Subject:** Vote NO on Article 16 Leaf Blower Ban

**From:** Stephen Harrington <stephen.thomas.harrington@gmail.com>

**Date:** 5/2/22, 07:08

**To:** GChristiana@town.arlington.ma.us

Dear Town Meeting Moderator Greg Christiana,

Please, post this to the Town Meeting Members Email List.

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tl;dr Vote No on Article 16 - leaf blower ban.

There are 70+ trees on, or immediately adjacent to (on the property line), our home in Arlington. Many are mature oak, hickory and maple trees reaching 60' or more in height.

In the fall, more than 100 cubic yards of leaves drop onto our property every year. For comparison, a typical dump truck holds 5 cubic yards of (compacted) material.

Take a look at the Dec.2 picture attached here that shows our neighbor's fall cleanup, with a third as many trees. That pile was 60' long, 3' high and 9' wide; 60 cubic yards. It took three men, a vacuum system and two high paneled dump trucks half a day to remove those leaves.

We share a driveway with our neighbor that is about 20' wide, 130' long rising 25'; a steep grade shaded by three mature oak trees. Attached is a picture showing a typical fall day with leaves coating our driveway. Wet leaves can be as slippery as ice, not removing them as soon as possible is not an option.

As of today, May 2nd, oak and hickory trees have not pushed their leaves; but when they do there will be over 500 pounds of droppings on our driveway, usually near the end of May but can extend into June. In an acorn/nut producing year, there can be 2000 pounds of acorns and nuts on the driveway alone. This bylaw creates a safety hazard for homeowners.

Our experience is not unique in our neighborhood zoned R0; many have similarly sized lots with an abundance of trees. Of our nearest neighbors; 7 (most elderly) use commercial services of 2-4 men with leaf blowers. Two neighbors use electric blowers for a fraction of their property. Spring and fall clean-ups extend until late May in the spring and early December in the fall and can take the better part of a day.

We maintain our own property in all seasons.

When we first bought our property, I used a broom to clear the driveway, once. It took about 3 hours. That's when I bought our first leaf blower. I sometimes use a rake,

sometimes a broom, sometimes a power tool. What makes you think you know better on how to maintain private property?

I invite any of the proponents of Article 16 to clear our driveway after the oaks drop using a broom.

For two decades, we dragged tarps of leaves uphill to compost piles that would be 12' in diameter and 10' high, leaving few at the curb. We routinely use the compost for gardening. Now about a third of the leaves end up, mostly in reusable barrels, at the curb.

Trees require maintenance; we have one removed, on average, about every three years, at an expense of about \$1500. Trimming occurs every other year for about \$1000. There are two sick trees on the property line; one will cost about \$3000 to remove. Sometimes trees get infected and need insecticides (moths) at a cost of about \$300 per tree.

Commercial services would charge us between \$3000 and \$5000 a year to provide lawn care and spring/fall cleanups. Some people run in circles for their health; we maintain our property. Power tools such as snow blowers, chain saws, mowers, trimmers and leaf blowers enable older homeowners the ability to do this. Why do you believe you could maintain a property of this size without power tools?

Article 16 is a tax, a tax that disproportionately impacts older and lower income residents. Users of commercial services will see increases in their expenses since electric leaf blowers are less than half the efficiency of gas powered blowers.

Approving article 16 will have negative unintended consequences.

It makes more economic sense to remove trees than to maintain them. Have you weighed the pollution created by blowers with the inevitable loss of trees?

Article 16 tasks the Arlington health department with enforcement, creating animosity between "offenders" with our public health employees. Do you think it is in the public interest to create tension between public health workers and residents? Do you think it is the best use of scarce public health resources to police residents under the guise of questionable mandates? This bylaw directs \*anyone\* to take photographs as evidence for mail-in fines. You think the town will be issuing fines to the golf club? Ask any parking enforcement officers how often tension results from fining people.

Article 16 enforcement rests on neighbor complaints, leading to a less welcoming community. Ever wonder why overnight parking violations seem to cluster in certain neighborhoods? Yeah, your neighbors complained. One resident complains about leaf blowers, in retaliation another complains you parked across from their driveway, an unleashed dog, contractors at your house at 6:30AM, loud talking after 11PM in your backyard. The tension escalates. This happens now.

The community Article 16 envisions is where neighbors complain about neighbors and take pictures of them doing what is allowed by State law.

Have you considered incentives for homeowners with abundant trees, a community resource, through property tax breaks or blower buybacks to ease transition to less effective tools?

Nope, instead Article 16 penalizes residents with taxes and fines while creating animosity and tension between neighbors.

In 2013, Town Meeting voted for a similar ban. A special election resulted in a majority of voters against such a ban. Have you polled a large fraction of residents about their support for a ban?

Why do you think Town Meeting's role is to tell residents what they can or cannot do at this level of detail?

I collected 800 of the 3000+ signatures for the special election. I also collected 200 signatures forcing a special town meeting that also refused to represent the will of voters, hurting Town Meetings' tenuous consent to govern.

I won't be collecting signatures to just overturn a leaf blower ban when Article 16 passes this time.

Vote No on Article 16.

Stephen Harrington

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image1.jpeg





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Attachments:

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| image0.jpeg | 145 KB |
| image1.jpeg | 191 KB |